# STANDARD ENTERPRISE CLOUD & AI MASTER SERVICES AGREEMENT

## Clause 2. Service Level Agreement and Availability

Vendor warrants that the cloud software services shall achieve a monthly uptime percentage of at least 99.9%. In the event of failure to meet the SLA, Customer's sole remedy shall be service credits applied to subsequent billing cycles.

## Clause 6. Data Protection and Security Standards

Vendor agrees to maintain industry-standard administrative, physical, and technical safeguards. Vendor shall process Customer personal data strictly in compliance with applicable data protection laws including the Digital Personal Data Protection Act, 2023.

## Clause 9. Limitation of Liability and Super Cap

Neither party shall be liable for indirect, incidental, or consequential damages. Each party's maximum aggregate liability shall be limited to the fees paid in the twelve (12) months preceding the incident, except that for breaches of confidentiality or gross negligence, liability shall be subject to a super-cap of two times (2x) the annual contract value.

## Clause 11. Termination for Convenience and Cause

Either party may terminate this Agreement for cause if the other party materially breaches and fails to cure such breach within thirty (30) days of notice. Customer may terminate for convenience upon sixty (60) days advance written notice.